

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
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UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF VIRGINIA

Civil Action No. SYN-WDVA-25-CV-0733

Officer Rusk's Motion for Summary Judgment

Filed November 21, 2025.

Defendant Officer Nolan Rusk moves under Federal Rule of Civil Procedure 56 for summary judgment on Mara Ellison's remaining claim against him in his individual capacity. The amended complaint asserts that Rusk used excessive force during a February 3, 2025 welfare seizure. The City of Alder Creek and Chief Samuel Orton are no longer defendants, and no municipal or supervisory claim remains for decision.

Rusk seeks judgment on two grounds. First, he contends the force was objectively reasonable based on his account of an active twist, a forearm strike, and a hand moving toward his duty belt. Second, he invokes qualified immunity and argues that precedent did not place the alleged unlawfulness beyond debate in the particular circumstances he perceived.

The accompanying memorandum and statement of facts supply the argument and record citations. This motion does not ask the Court to treat the obscured body-camera interval as a conclusive recording of the disputed hand movements. It asserts that the record and applicable legal standards support judgment for Rusk.

Motion — precise claim and relief requested

Ellison's operative count arises under 42 U.S.C. § 1983 and the Fourth Amendment. It challenges one drive-stun conducted-energy-weapon cycle and the related takedown after Rusk initiated wrist control during a welfare encounter at Larkspur Court Apartments. She requests damages and other relief against Rusk personally.

Rusk asks the Court to enter judgment in his favor and terminate the individual-capacity claim. He does not seek adjudication of a nonexistent criminal charge, an involuntary-commitment order, or a claim against Officer Priya Vega. He does not request a finding that mental illness itself creates danger. His position is that the force responded to conduct he perceived after contact began.

If the Court concludes a genuine dispute prevents judgment on objective reasonableness, Rusk asks the Court to address the distinct qualified-immunity question under the properly particularized right. He preserves his contention that immunity protects against trial, while recognizing that Rule 56 requires reasonable inferences for Ellison and does not permit credibility weighing.

Motion — materials placed before the Court

Rusk relies on the pleadings, authenticated dispatch and police materials, both body-camera recordings, the conducted-energy-device log, scene photographs, reports, medical records, depositions, expert materials, and declarations or discovery responses identified in the filing index. He also relies on his separately filed statement of material facts.

The parties agree on much of the sequence: a welfare call reported no weapon; Rusk contacted Ellison while she was distressed; he took wrist control; physical movement followed; one five-second drive-stun cycle occurred during a takedown; Ellison was handcuffed and received medical care. They dispute whether she struck Rusk and reached toward his belt or merely pulled and recoiled from pain without posing immediate danger.

The two cameras do not reliably show the hands between approximately 19:53:08 and 19:53:22. Rusk therefore presents his testimony as evidence rather than claiming the recording mechanically settles the dispute. He objects to any argument that lack of a visible strike is itself a visible disproof, while accepting that the Court must not manufacture unseen pixels or infer facts merely from an obstruction.

Motion — Rule 56 presentation

Under Rule 56, the moving party identifies the absence of a genuine dispute or the legal basis for judgment on the supported record. A fact is material when it can affect the governing legal analysis. The Court may consider admissible materials and evidence capable of presentation in an admissible form, drawing reasonable inferences for the nonmovant.

Rusk contends no reasonable jury could reject his perception when the testimony, motion, audio, and surrounding movement are considered together. Ellison disputes that contention through her own account, Vega's limited view, caller context, expert opinions, and the recording's inability to display the decisive acts. The memorandum explains why Rusk believes those sources do not create a trial issue or, alternatively, why immunity should apply.

Rusk acknowledges that the Court cannot choose a witness solely because one is an officer, treat an incident-report label as a credibility finding, or resolve an ambiguous recording against the nonmovant. If the Court identifies facts it assumes for legal analysis, Rusk requests that it state them specifically so the factual-sufficiency and legal questions remain distinct.

Motion — qualified-immunity question

Qualified immunity asks whether the properly viewed facts show a constitutional violation and whether the right was clearly established at the time. Rusk argues the question must be framed with the particular force, resistance, perceived equipment access, welfare purpose, scene, and duration rather than at the general level of a right to be free from excessive force.

His memorandum addresses *Graham v. Connor*, *Armstrong v. Village of Pinehurst*, *Smith v. Ray*, *Meyers v. Baltimore County*, and other authority available before February 3, 2025. Rusk contends those decisions did not clearly prohibit a single contact cycle where an officer perceived a strike and movement toward a duty belt during close physical resistance.

Ellison's anticipated response frames the assumed facts differently: an unarmed welfare subject pulled from painful wrist control but did not strike, grab, flee, reach, or create immediate danger. Rusk preserves his legal argument on that version but does not suggest the Court may silently import his disputed strike-and-reach facts into a plaintiff-favorable analysis.

Motion — requested findings and procedural boundary

Rusk requests a written ruling that identifies whether judgment rests on the absence of a constitutional violation, the clearly-established-law prong, or both. If factual disputes prevent full judgment, he asks the Court to identify the material disputes and decide any separable legal question that can be answered on stated assumptions.

The request reflects the procedural importance of immunity without expanding Rule 56. A denial based only on evidence sufficiency does not become a legal holding merely because the defense is qualified immunity. Conversely, the question whether specified assumed conduct violates clearly established law is legal even if a jury must later decide whether the conduct occurred.

Rusk does not request an advisory reconstruction of the fourteen-second obstruction. The Court can describe what each witness says, what the recordings show, and which version governs each part of its analysis. It need not resolve all historical details to explain why a dispute is material or to decide a legal issue on the nonmovant's version.

Motion — conclusion and certification

For the reasons in the accompanying papers, Rusk asks the Court to grant summary judgment on the sole remaining § 1983 claim. He contends the force was objectively reasonable under the facts he perceived and that, in any event, he did not violate a right clearly established with sufficient specificity on February 3, 2025.

If the motion is denied, Rusk asks for a precise order separating evidentiary disputes from legal conclusions. He does not ask the Court to enter final judgment on claims already removed by the amended pleading, to certify a Rule 54(b) judgment, or to deem the body-camera obstruction a fact in his favor.

Counsel certifies that the motion and supporting materials were served electronically on November 21, 2025. The parties completed the required conference about the filing record and agreed that native media would remain available in the form authenticated by the custodian. Their agreement about authenticity does not waive objections to interpretation, expert use, hearsay purpose, or the legal significance of any recorded event.

Respectfully submitted,

Fictional Counsel for Officer Nolan Rusk